

DATA PROCESSING AGREEMENT (DPA)

pursuant to Article 28 GDPR

between

[Name of the Clinic] Address: [Address] (hereinafter referred to as the “Controller”)

and

Flowmatix – Automation An der Moorbäke 6 27798 Hude Germany (hereinafter referred to as the “Processor”)

SUBJECT OF THE PROCESSING

The Processor processes personal data on behalf of the Controller for the purpose of:

digital patient communication

pre-qualification of patients

organization of consultations and appointments

forwarding patient-related information to the clinic’s specialist staff

Processing is carried out exclusively in accordance with the instructions of the Controller.

TYPE OF DATA

The following categories of personal data may be processed:

Master data (name, age, gender, country)

Contact data (e.g. telephone number, email address)

Health-related data (e.g. hair status, medical history)

Image data (medical photographs)

Appointment data and communication content

CATEGORIES OF DATA SUBJECTS

Patients and prospective patients of the clinic.

PURPOSE OF THE PROCESSING

Data processing serves exclusively for the purpose of:

preparation of a medical assessment

patient consultation and appointment organization

internal forwarding to physicians, coordinators, or authorized clinic personnel

No medical diagnosis or medical decision-making is carried out by the Processor.

RIGHT TO ISSUE INSTRUCTIONS

The Processor processes personal data exclusively on documented instructions from the Controller.

CONFIDENTIALITY

The Processor undertakes to treat personal data confidentially and to grant access only to persons who are authorized to process such data and who are bound by confidentiality obligations.

TECHNICAL AND ORGANIZATIONAL MEASURES

The Processor implements appropriate technical and organizational measures to ensure data security, in particular:

access restrictions

protection against unauthorized access

purpose limitation

data transmission exclusively via secure connections

SUB-PROCESSORS

The Controller agrees that the Processor may engage technical service providers (e.g. hosting, communication, or cloud service providers) for the fulfillment of this contract, provided that such providers also comply with the GDPR.

DATA RETENTION PERIOD

Personal data shall be stored only for as long as necessary for the agreed purpose or as specified by the Controller.

After termination of the processing, the data shall be deleted or returned, unless statutory retention obligations apply.

RIGHTS OF DATA SUBJECTS

The Processor supports the Controller in safeguarding the rights of data subjects (access, erasure, rectification), insofar as this is required within the scope of the processing.

LIABILITY

The Processor assumes no liability for medical decisions, treatment measures, or therapeutic recommendations. These remain exclusively the responsibility of the clinic.

TERM

This agreement enters into force upon signature and ends upon termination of the data processing.

FINAL PROVISIONS

Any amendments or supplements to this agreement must be made in writing.

Place, Date

[Clinic Name / Controller] Signature: _____

[Flowmatix / Your Name] Signature: _____